

CHAPTER 12

An Act to extend for a further period the operation of the Leasehold Property (Temporary Provisions) Act, 1951, and the Long Leases (Temporary Provisions) (Scotland) Act, 1951. [6th May 1953.]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Extension of
14 & 15 Geo. 6.
c. 38.

1.—(1) For the purpose of extending the period for which the Leasehold Property (Temporary Provisions) Act, 1951, operates, that Act shall be amended—

- (a) by the substitution for references to the period of two years beginning with the commencement of that Act of references to the period (hereafter in this section referred to as “the extended period”) beginning with the commencement of that Act and ending with the twenty-fourth day of December, nineteen hundred and fifty-four, and
- (b) by the substitution for references to the expiration of two years after the commencement of that Act of references to the expiration of the extended period.

(2) In the application of section five of the said Act of 1951 to tenancies granted for terms expiring on or after the twenty-fourth day of June, nineteen hundred and fifty-three, subsection (4) of that section (which provides for the staying of proceedings to enforce certain covenants brought after the introduction and before the commencement of that Act) shall have effect—

- (a) with the substitution for the reference to the twenty-first day of November, nineteen hundred and fifty of a reference to the twenty-first day of January, nineteen hundred and fifty-three, and
- (b) with the substitution for the first three references to the commencement of the said Act of 1951 of references to the commencement of this Act.

(3) Notwithstanding anything in section eleven of the said Act of 1951, where apart from that section the expiring tenancy—

- (a) would come to an end by notice to quit given by the landlord, and

(b) would so come to an end on or after the twenty-third day of June, nineteen hundred and fifty-three,

an application under Part II of the said Act of 1951 shall not be treated as out of time if made not later than one month after the commencement of this Act.

In this subsection the expression "the expiring tenancy" has the same meaning as in Part II of the said Act of 1951.

(4) Notwithstanding anything in subsection (1) of this section, that subsection shall not affect sub-paragraph (iii) of paragraph (c) of subsection (1) of section two of the said Act of 1951 (which provides, as a condition of the continuation of long leases expiring before the commencement of that Act, that if the tenant was holding over in right of a tenancy the tenancy must have been such as to expire or to be capable of being terminated earlier than the expiration of two years after the commencement of that Act).

2.—(1) For the purpose of extending the period for which the Extension of Long Leases (Temporary Provisions) (Scotland) Act, 1951, ^{14 & 15 Geo. 6. c. 28.} operates, that Act shall be amended by the substitution for the reference to the period of two years beginning with the commencement of that Act appearing in subsection (1) of section one thereof of a reference to the period beginning with the commencement of that Act and ending with the term of Martinmas, nineteen hundred and fifty-four.

(2) In the application of section three of the said Act of 1951 (which provides *inter alia* for the sisting of certain proceedings brought by a landlord against a tenant after the introduction and before the commencement of that Act) to leases of property in Scotland terminating at an ish falling on or after the tenth day of May, nineteen hundred and fifty-three, subsection (1) of that section shall have effect—

(a) with the substitution for the reference to the twenty-first day of November, nineteen hundred and fifty, of a reference to the twenty-first day of January, nineteen hundred and fifty-three, and

(b) with the substitution for the references to the commencement of that Act of references to the commencement of this Act.

3. This Act may be cited as the Leasehold Property Act and Short title. Long Leases (Scotland) Act Extension Act, 1953.